



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUN 6 1996

DOT-E 10257
(FIRST REVISION)

EXPIRATION DATE: April 30, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Libbey-Owens-Ford Company
Toledo, Ohio
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain Class 8, Corrosive solid, toxic, n.o.s. (Dimethyltin dichloride (DMT)), in a non-DOT specification steel portable tank mounted in an outer steel box. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.240.
5. BASIS: This exemption is based on the application of Libbey-Owen-Ford Company dated March 28, 1996, submitted in accordance with 49 CFR 107.105.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Corrosive solid, toxic n.o.s. (Dimethyltin dichloride (DMT))	8	UN2923	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. Packaging prescribed consists of a non-DOT specification portable tank permanently installed in an outer watertight, insulated steel box equipped with heating

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coils. The packaging must be as described on Kennedy Tank & Manufacturing Company Drawing No. 16221-B Rev.2, dated February 23, 1989 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The non-DOT specification portable tank is designed for an internal pressure 70 psig and full vacuum; is constructed of Hastelloy; has a nominal water capacity of 350 gallons; and is ASME Code "U" stamped. The maximum net weight of dimethyltin dichloride shipped in the packaging is 5,000 pounds and the maximum gross weight of the packaging is 8,900 pounds.

b. Dimethyltin dichloride must be transported in a solid state.

c. Each portable tank must be visually inspected prior to each shipment to ensure that it has not been damaged during loading. Additionally, each portable tank must be retested and reinspected once every two years as prescribed in 49 CFR 173.32b for DOT Specification IM portable tanks.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. Reuse of container must be in accordance with applicable requirements of 49 CFR 173.28.

f. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10257".

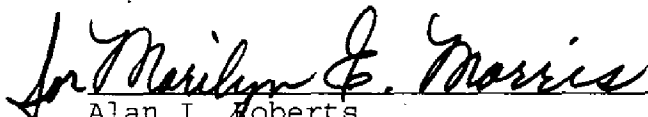
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

- b. Each tank must be secured to the motor vehicle by a system which conforms with the requirements contained in 49 CFR 393.100 through 393.106.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.
- No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.
12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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